



Coal Industry Act 1982

1982 CHAPTER 15

An Act to increase the limit on the borrowing powers of the National Coal Board; and to make further provision with respect to grants and payments by the Secretary of State in connection with the coal industry.

[7th April 1982]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In section 1(3) of the Act of 1965 (which, as amended by **Borrowing** section 1(1) of the Act of 1980, provides for a limit, which may be **powers.** increased by order, on the borrowing of the Board and their wholly-owned subsidiaries), for “£3,400 million” (the initial limit) substitute “£4,500 million” and for “£4,200 million” (the highest limit which may be set by order) substitute “£5,000 million”.

2.—(1) In section 3 of the Act of 1980 (under which the Secretary of State may make grants in respect of group deficits of the Board and their subsidiaries for financial years of the Board up to and including 1982–83), at the end of subsection (1) add “or for the financial year of the Board ending in March 1984”. **Deficit and operating grants.**

(2) In subsection (3) of section 4 of the Act of 1980 (which provides for a limit on the aggregate amount of grants under section 3 of that Act together with certain other grants), for “£525 million” substitute “£1,000 million”; and in subsection (4) of that section (which enables the limit to be increased by order, subject to a maximum) for “£590 million” substitute “£1,750 million”.

Reimbursement of certain payments in respect of loss of superannuation and employment prospects.

3.—(1) The Secretary of State may out of money provided by Parliament make payments to the Board reimbursing them the amount of payments made by them in respect of loss of superannuation and employment prospects of persons becoming eligible on or after 11th March 1981 to receive payments under a scheme under section 7 of the Act of 1977 (payments to redundant workers).

(2) The amount of any payments qualifying for reimbursement under subsection (1) shall be determined in such manner as may be agreed between the Secretary of State and the Board with the approval of the Treasury and shall be certified by the Board's auditors.

(3) In Schedule 2 to the Act of 1977 (definition of "relevant expenditure" for the purposes of grants under section 6 of that Act), after sub-paragraph (1) of paragraph 1 insert—

"(1A) Head (ii) above shall not include payments in respect of loss of superannuation and employment prospects where those payments are reimbursed by the Secretary of State under section 3 of the Coal Industry Act 1982."

Grants and payments in connection with pit closures and redundancies.

4.—(1) In section 6 of the Act of 1977 (grants by the Secretary of State in connection with pit closures), in subsection (5) (which, as amended by section 6(1) of the Act of 1980, provides for a single limit on the aggregate amount of such grants) for "£170 million" substitute "£200 million".

(2) In section 7 of the Act of 1977 (payments by the Secretary of State to or in respect of redundant workers), in subsection (5) (which, as substituted by section 7(3) of the Act of 1980, provides for a single limit on the aggregate amount of such payments) for "£220 million" substitute "£300 million".

Interpretation.
1965 c. 82.
1977 c. 39.
1980 c. 50.

5. In this Act—

"the Act of 1965" means the Coal Industry Act 1965;
"the Act of 1977" means the Coal Industry Act 1977;
"the Act of 1980" means the Coal Industry Act 1980;
"the Board" means the National Coal Board.

Citation and extent.

6.—(1) This Act may be cited as the Coal Industry Act 1982, and the Coal Industry Acts 1946 to 1980 and this Act may be cited together as the Coal Industry Acts 1946 to 1982.

(2) This Act does not extend to Northern Ireland.